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Case Number: 22STCV21977 Hearing Date: September 11, 2026 Dept: 414

22STCV21977 Marc Alan Corbin, et al. v.

720 Normandie LP, et al.

Friday,

September 11, 2026

(1) [TENTATIVE]

ORDER GRANTING PLAINTIFFS' JOINT MOTION TO COMPEL DEFENDANT PRANA HOLDING
COMPANY LLC RESPONSES FOR FORM INTERROGATORIES-GENERAL SET ONE

(2) [TENTATIVE]

ORDER GRANTING PLAINTIFFS' JOINT MOTION TO COMPEL DEFENDANT PRANA INVESTMENTS
RESPONSES FOR FORM INTERROGATORIES-GENERAL SET ONE

(3) [TENTATIVE]

ORDER GRANTING PLAINTIFFS' JOINT MOTION TO COMPEL DEFENDANT STATEWIDE
ENTERPRISES, INC. RESPONSES FOR FORM INTERROGATORIES-GENERAL SET ONE

I.

BACKGROUND

The complaint alleges Defendants leased
residential premises to Plaintiffs that suffered from multiple habitability
issues. The operative complaint is the
First Amended Complaint filed on March 17, 2023 alleging (1) tortious breach of
the implied warranty of habitability; (2) breach of the implied warranty of
habitability; (3) nuisance (negligent); (4) nuisance (intentional); (5)
negligence; (6) intentional infliction of emotional distress; (7) breach of the

implied covenant of quiet use and enjoyment; and (8) premises liability.

On May 26, 2026, Plaintiffs in pro per filed three motions to compel initial responses to form interrogatories from (1) Defendant Prana Holding Company LLC; (2) Defendant Statewide Enterprises, Inc.; and (3) Defendant Prana Investments (collectively "Defendants"). On August 24, 2026, Defendants each filed separate oppositions to the motions to compel. On September 3, 2026, Plaintiffs filed separate joint replies to each of the oppositions. On September 8, 2026, Defendants each filed supplemental declarations in support of their original oppositions. On September 9, 2026, Plaintiffs filed a joint objection to the unauthorized supplemental declarations.

II.

LEGAL STANDARDS

When a party to whom interrogatories are directed fails to respond, a party propounding the interrogatories may move for an order compelling a response. (Code of Civ. Proc. §2030.290, subd. (b).) A party who fails to provide a timely response waives any objection, including one based on privilege or work product. (Id. at subd. (b).) For a motion to compel initial responses, no meet and confer is required. All that must be shown is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response has been served. (Leach v. Sup. Ct. (1980) 111 Cal.App.3d 902, 905-906.)

III.

DISCUSSION

A. Motion to Compel Initial

Responses from Defendant Prana Holding Company, LLC (Res. No. -7534)

Plaintiffs move to compel initial responses to form interrogatories served on Defendant Prana Holding Company, LLC on December 7, 2023. Plaintiffs claim Defendant failed to serve any responses, much less timely responses. Plaintiffs request sanctions in the amount of \$1,396.00 pursuant to Code of Civil Procedure sections 128.5 and 2030.290.

In opposition, Defendant argues the motion is moot because it served verified responses on June 2, 2026. Defendant argues it served verified supplemental responses on August 24, 2026 without objections. Defendant argues Plaintiffs are in pro per and can only recover costs, not fees. Defendant argues Plaintiffs cannot recover for the time required to prepare the briefing, nor may it recover for filing fees on reply. Defendant argues replies do not require a filing fee.

In reply, Plaintiffs argue the responses served on August 24, 2026 were incomplete. Plaintiffs argue Defendant failed to respond at all to FR 1.1, 3.1-3.7 and approximately 29 subparts. Plaintiffs argue they have submitted a declaration in support of the sanctions request and that is sufficient. Plaintiffs maintain they attempted to meet and confer in good faith despite not being required to do so.

In a supplemental declaration, Defense counsel restates the facts attested to in the original declaration in support of the opposition and explains the failure to supplement FR 1.1, 3.1-3.7. Defendant testifies that FR 1.1, 3.1-3.7 did not require supplemental responses, because full responses were served to those interrogatories on July 2, 2026.

As discussed in *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, the Court has several options if untimely responses are served once a motion to compel is filed. “The trial court might compel responses without objection if it finds no legally valid responses have been provided to one or more interrogatories; it might deny the motion to compel responses as essentially unnecessary, in whole or in part, and just impose sanctions; it might treat the motion as one under section 2030.300 and either determine that further answers are required, or order the propounding party to “meet and confer” (§ 2030.300, subd. (b)) and file a separate statement (Cal. Rules of Court, rule 3.1020(a)(2), (c)); or it might take the motion off calendar, thereby requiring the propounding party to file a motion under section 2030.300 [statute governing motions to compel further responses to interrogatories].” (Sinaiko Healthcare Consulting, Inc., *supra*, 148 Cal.App.4th at 409.)

Defendant's responses served on July 2, 2026, contained general objections applicable to all of the interrogatories and specific objections to certain interrogatories. (Opposition, Feldstein Dec., Ex. A.) The July 2, 2026 responses therefore did not moot Plaintiffs' motion to compel responses without objection.

Defendant's August 24, 2026 responses were also defective, because they are prefaced by general objections and fail to fully respond to certain interrogatories.

A number of Defendant's supplemental responses refer to Bates numbers, rather than provide full substantive answers, or fail to fully respond to all subparts, including requests for contact information of witnesses or persons holding certain evidence. (See e.g., Feldstein Supp. Dec., Ex. C, FR 4.1, 12.1, 12.4, 12.7, 15.1, 16.2, 16.3, 16.5.)

Thus, based on a review of the Defendant's July 2, 2026 and August 24, 2026 responses, Plaintiffs' motion to compel full verified responses without objection to Plaintiff's Form Interrogatories (Set One) is not moot. Defendant failed to serve timely responses thereby waiving all objections. Defendant served defective responses containing specific and general objections on July 2 and August 24, 2026. Defendant's supplemental responses also failed to fully respond to a number of the interrogatories. Plaintiffs' motion to compel is therefore granted.

Plaintiffs also request sanctions in the amount of \$1,360. Plaintiffs are self-represented. "A pro se litigant cannot recover attorney's fees as a discovery sanction, but he can recover the 'reasonable expenses' he has 'incurred,' including photocopying, computer-assisted legal research, and other identifiable and allocable costs." (Kravitz v. Superior Court (2001) 91 Cal.App.4th 1015, 1017.) Although a self-represented litigant may recover attorney's fees actually incurred for legal assistance provided in connection with a discovery dispute, the litigant must establish that such fees were in fact incurred. (Dalessandro v. Mitchell (2019) 43 Cal.App.5th 1088, 1093; Argaman v. Ratan (1999) 73 Cal.App.4th 1173, 1181.)

Here, Plaintiffs seek \$1,000 based upon four hours of "Legal research and assistance \$250 per hour." (Motion, Megan

Corbin Decl., ¶ 7.) The declaration, however, does not identify an attorney who provided the claimed assistance, state that Plaintiffs retained or paid an attorney, attach an invoice or billing record, or otherwise establish that Plaintiffs actually incurred an obligation to pay \$250 per hour for legal services. Nor is there evidence establishing the source or basis for the asserted \$250 hourly rate. The bare characterization of time spent on "legal research and assistance," without evidence that the claimed expense was actually incurred, is insufficient to support an award of attorney's fees or other legal-assistance expenses. The Court therefore declines to award the requested \$1,000. Plaintiffs have, however, established \$336 in recoverable costs actually incurred in connection with the discovery dispute. Accordingly, the Court awards Plaintiffs monetary sanctions consisting solely of costs in the amount of \$336.

Plaintiffs' alternative request for sanctions pursuant to Code of Civil Procedure section 128.5 is denied. Plaintiffs fail to satisfy either the procedural or substantive requirements for such sanctions. (Code of Civ. Proc., §128.5, subd. (a)(trial court may award sanctions based on frivolous, bad faith actions or tactics or actions or tactics solely intended to cause unnecessary delay by party, party attorney or both), (f)(1)(A)("motion or sanctions under this section shall be made separately from other motions or requests...."))

Plaintiffs' Motion to Compel Responses to Form Interrogatories from Defendant Prana Holding Company, LLC is GRANTED. Plaintiffs' request for sanctions is GRANTED in the amount of \$1,360. Defendant Prana Holding Company, LLC is ordered to serve full responses to each form interrogatory, including subparts, without objection within 20 days.

B. Motion to Compel Initial Responses from Defendant Prana Investments (Res. No. -8801)

Plaintiffs move for an order compelling verified responses without objection to form interrogatories served on Defendant Prana Investments on July 14, 2023. Plaintiffs argue Defendant served untimely, evasive, unverified answers on November 3, 2023 that are tantamount to no response at all. Plaintiffs request sanctions in the amount of \$1,409 pursuant to Code of Civil Procedure sections 128.5 and 2030.300 subdivision (d).

In opposition, Defendant Prana Investments argues the motion is moot. Defendant argues it served verifications of this November 3, 2025 responses on June 2, 2026 and served verified supplemental responses without objection on August 24, 2026. Defendant argues Plaintiffs are not entitled to the requested sanctions as pro per litigants.

In reply, Plaintiffs raise the same arguments raised in its reply to Prana Holding Company, LLC's opposition. Plaintiffs argue the responses served after the filing of the motion are defective and fail to fully respond to the interrogatories.

In a supplemental declaration, defense counsel explains that supplemental responses were not served to FR 1.1 through 3.7 because the original November 3, 2023 responses fully responded to those interrogatories.

The substantive November 3, 2023 responses were also unverified and therefore tantamount to no responses at all. (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.) Verifications were only sent on July 2, 2026, after this motion was filed. Code of Civil Procedure section 2030.290 for initial responses, as opposed to section 2030.3100 for further responses, is the applicable code section.

As discussed in connection with the motion to compel responses from Prana Holding Company, LLC's, the Court has multiple options where responses are served after a motion to compel is filed under Sinaiko. Having reviewed the unverified November 3, 2023 responses and the August 24, 2026 supplemental responses, they are defective for the same reasons stated in connection with Prana Holding Company, LLC's responses. Both sets of responses contain objections, even though Prana Investment did not serve timely responses to the July 14, 2023 form interrogatories. The August 24, 2026 supplemental responses are defective because they do not fully respond to the certain interrogatories. The November 3, 2023 and August 24, 2026 responses do not moot the instant motion. Plaintiffs' motion to compel responses from Prana Investments to form interrogatories (set one) is granted.

Plaintiffs also request monetary sanctions. Plaintiffs are self-represented. "A pro se litigant cannot recover

attorney's fees as a discovery sanction, but he can recover the 'reasonable expenses' he has 'incurred,' including photocopying, computer-assisted legal research, and other identifiable and allocable costs." (Kravitz v. Superior Court (2001) 91 Cal.App.4th 1015, 1017.) Although a self-represented litigant may recover attorney's fees actually incurred for legal assistance provided in connection with a discovery dispute, the litigant must establish that such fees were in fact incurred. (Dalessandro v. Mitchell (2019) 43 Cal.App.5th 1088, 1093; Argaman v. Ratan (1999) 73 Cal.App.4th 1173, 1181.)

Here, to the extent Plaintiffs seek sanctions based upon "legal research and assistance" calculated at an hourly rate, the evidence does not identify an attorney who provided the claimed assistance, establish that Plaintiffs retained or paid an attorney, or otherwise demonstrate that Plaintiffs actually incurred an obligation to pay for such legal services. Nor is there evidence establishing the source or basis for the asserted hourly rate. The Court therefore declines to award sanctions based upon the claimed legal research and assistance.

Plaintiffs have, however, established \$409 in recoverable costs actually incurred in connection with this discovery dispute. Accordingly, the Court awards Plaintiffs monetary sanctions consisting solely of costs in the amount of \$409.

Plaintiffs' Motion to Compel Responses to Form Interrogatories from Defendant Prana Investments is GRANTED. Plaintiffs' request for sanctions is GRANTED in the amount of \$1,409. Defendant Prana Investments is ordered to serve full responses to each form interrogatory, including subparts, without objection within 20 days.

C.
Motion to Compel Initial Responses from Defendant Statewide Enterprises, Inc. (Res. No. -4899)

The briefing in support of and in opposition to Plaintiffs' Motion to Compel Initial Responses from Defendant Statewide Enterprises, Inc. is identical to that submitted in connection with Plaintiffs' Motion to Compel Initial Responses from Defendant Prana Investments. For the same reasons stated in connection with Plaintiffs' motion to compel responses from Defendants Prana Holding Company, LLC and Defendant Prana Investments is granted. Plaintiffs' request for sanctions is granted

in the amount of \$1,409 for the same reasons stated in connection with Plaintiffs' motions as to those Defendants as well.

Plaintiffs' Motion to Compel Responses to Form Interrogatories from Defendant Statewide Enterprises, Inc. is GRANTED. For the reasons discussed above, the Court declines to award Plaintiffs sanctions based upon the claimed "legal research and assistance." Plaintiffs are self-represented, and the evidence does not establish that they actually incurred attorney's fees or other legal-assistance expenses. Plaintiffs have, however, established \$409 in recoverable costs actually incurred in connection with this discovery dispute. Accordingly, the Court awards Plaintiffs monetary sanctions consisting solely of costs in the amount of \$409.

IV.

CONCLUSION

Plaintiffs' Motion to Compel Responses to Form Interrogatories from Defendant Prana Holding Company, LLC is GRANTED. Plaintiffs' request for sanctions is GRANTED in the amount reflected in the order. Defendant Prana Holding Company, LLC is ordered to serve full responses to each form interrogatory, including subparts, without objection within 20 days.

Plaintiffs' Motion to Compel Responses to Form Interrogatories from Defendant Prana Investments is GRANTED. Plaintiffs' request for sanctions is GRANTED in the amount reflected in the order. Defendant Prana Investments is ordered to serve full responses to each form interrogatory, including subparts, without objection within 20 days.

Plaintiffs' Motion to Compel Responses to Form Interrogatories from Defendant Statewide Enterprises, Inc. is GRANTED. Plaintiffs' request for sanctions is GRANTED in the amount of reflected in the order. Defendant Statewide Enterprises, Inc. is ordered to serve full responses to each form interrogatory, including subparts, without objection within 20 days.